



Town of Lewisville, NC

Notice of Request for Proposals

CLASSIFICATION & COMPENSATION STUDY SERVICES

Issue Date: August 30, 2024

To: All Prospective Respondents

From: Stacy Tolbert, Town Manager

Subject: Request for Proposals for Classification and Compensation Study

THE PROJECT

The Town of Lewisville is seeking proposals from qualified firms to provide classification and compensation study services to the Town. We anticipate having a Classification & Compensation system that is logical, understandable and equitable.

We are interested in a process that includes employee engagement in an evaluation of our system. The Town's objectives are to:

- Study and evaluate all positions within the Town for purposes of determining proper classification and salary for each employee;
- Standardize and modernize job titles and job descriptions;
- Identify those classes of positions that are exempt and non-exempt in compliance with the Fair Labor Standards Act;
- Conduct employee information gathering sessions;
- Develop and present final recommendations and implementation plan including impact of implementing recommended adjustments to current salaries both immediately and in the future; and
- Make recommendations to the Town Manager about any changes to compensation system.

Proposals are due by 4:00PM on Monday, September 23, 2024.

INTRODUCTION

The Town of Lewisville is a small town nestled in Western Forsyth County with a population of approximately 13,500 residents. Lewisville prides itself on small town charm and community. The Town operates under a Manager/Council form of government with only 13 full-time employees to deliver quality services to the community.

SCOPE OF SERVICES

The Town of Lewisville invites all qualified personnel management consultants to submit proposals to:

1. Perform a review of the existing classification plan,
2. Provide a comprehensive evaluation of every job within the Town to determine relative worth within the organization for the establishment of pay ranges and step progressions within the ranges,
3. Simplify or create job titles and job descriptions and align all jobs into job families with similar roles and functions; and that may reflect a similar level of education and skills and/or tasks,
4. Analyze and recommend changes to the present compensation structure to meet market analysis. This may include recommendations for individual positions as well.
5. Review job descriptions and place them in the compensation structure at the appropriate level,
6. Identify potential pay compression issues and provide potential solutions, and
7. Review current staffing patterns to ensure that the organization is properly staffed for effectiveness and efficiency.

TASK 1: Information Meetings

1. Consultant to schedule an initial meeting with the Town Manager to discuss the process and tasks to be performed in the study to include reasonable dedication of key personnel.
2. Consultant to meet with Town Manager and department heads to explain study and process to be used.
3. Consultant to provide at least bi-weekly updates to the Town Manager.

TASK 2: Classification Study

1. Consultant to review current classification grade methodology and propose recommended strategies for the town.
2. Consultant to conduct interviews and/or job audits with each employee.
3. Consultant to update job descriptions to uniformly reflect the distinguishing characteristics, essential job functions, minimum qualifications (education/experience and knowledge/skills/abilities), working conditions (physical demands, work environment, and travel requirements), and certification/licenses/registration

requirements for classification as needed. Job descriptions are to be updated for all positions, regardless of whether or not any change is recommended in compensation for such position.

4. Consultant to identify Officials & Administrators, Professionals, Technicians, Paraprofessionals, Administrative Support, Skilled Craft Workers, and Service employees, including Fair Labor Standards Act status.
5. Consultant to present proposed recommendations to the Town Manager for review prior to making any final classification determinations.
6. Consultant to finalize class specifications and recommend appropriate classification for each employee.
7. Consultant to identify staffing adjustments and or opportunities as deemed appropriate.
8. Consultant to submit recommendations for appropriate implementation measures that the various departments will need to take.

TASK 3: Compensation Study

1. Consultant to review current compensation plan (salary grade levels) and understand current challenges in recruiting and retaining employees.
2. Consultant to recommend and identify a consistent and competitive market position that the Town can strive to maintain.
3. Consultant to recommend comparable labor markets, including both private and public sector employees for compensation study.
4. Consultant to recommend appropriate salary range for each position based on the classification plan, internal relationships and equality. Prepare a new salary structure based on best practices.
5. Consultant to identify any extreme current individual or group compensation inequities and to provide a recommended corrective action plan and process to remedy these situations.
6. Consultant to conduct a compression analysis to include any recommendations for implementation.

Town Resources

The Town will provide access to staff, copies of all pay ranges, job classifications, and any other available in-house information requested by the selected consultant that may be required to complete the study.

PROPOSAL SUBMISSION REQUIREMENTS

Timeline: The successful firm should expect to begin work in October of 2024. The following is the preliminary schedule for securing the consultant:

Action	Date
RFP Issued	August 30, 2024
RFP Responses Due	September 23, 2024
Firms Short-listed (if needed)	September 27, 2024
Firm Interviews (if needed)	Week of September 30, 2024
Selection of Firm	September 27, 2024
Contract Approval by Town Council	October 10, 2024
Project Start	October 14, 2024
Project Completion	TBD during contract negotiations

Content and Format of Submission:

Letter of Interest

- A cover letter/letter of interest on company letterhead, signed by an authorized representative, expressly agreeing to the Town of Lewisville's terms and conditions contained in this Request for Proposal and its attachments.
- The name, address and telephone number of a single point of contact with the authority to answer questions or provide clarification regarding the proposal;
- Disclose any current, pending or potential disciplinary action or litigation, against the firm or against any partner or associate of your firm or team;
- Any assistance requested from the Town;

Firm and Staff Qualifications:

- The size, organization and structure of the firm, and the type of clients served.
- Provide an organizational chart identifying all staff assigned to the project and defining roles, responsibilities, and task assignments of each member for the duration of the project.
- Memberships in professional organizations;
- The firm's experience in performing similar or related projects.
- The expertise and experience of all staff assigned to the project.
- The firm's current and projected workloads.
- Identify at least three (3) references to include:
 - o The organization/business, address, contact person, phone number
 - o Date and scope of services
 - o Examples of at least two (2) similar projects completed in the last three (3) years. Examples may be provided in electronic format or by providing an internet link.
- Provide documentation or any additional information to clearly demonstrate that the firm meets or exceeds the requirements set forth in this RFP.

Project Approach Statement

A statement about the proposed approach and chosen methodology that will achieve the project's objectives and the Scope of Work. Describe your team's approach to

successfully delivering the project. Provide details on how each task will be completed including specific methodologies, approaches, tasks and schedules.

Cost Proposal: No Implied Contract

Provide a project budget. All costs proposed are to be unbundled, detailed and include itemized pricing. It is to be inclusive of labor, materials, equipment, incidentals, etc. necessary to provide the scope of work outlined in this RFP for the below requested hourly rates. Rates proposed are also to include all expenses, including general overhead, equipment, field overhead, profit, travel per diem, all necessary food, water, restroom and lodging facilities needed to provide these services.

- *Contract Hours*
Proposals must include estimated hours for each task.
- *Rate Sheet*
Proposals must include a rate sheet by position that is good for the duration of the project.
- *"Not to Exceed"*
Fee Proposals must include the maximum cost of deliverables and all reimbursable expenses.

SELECTION PROCESS

Final selection and contracting will be subject to approval by the Town of Lewisville. All firms expressing interest will be thoroughly considered and evaluated by a Selection Committee. The committee will review the submitted proposals. The Town may invite the firms for a presentation on their proposal to the Selection Committee; the firm being responsible for all costs related to this presentation. The Selection Committee will make a recommendation to the Town Council who may then award the contract to the responsible firm with the most advantageous proposal, taking into consideration price, cost effectiveness, comprehensiveness, and project approach.

EVALUATION CRITERIA

- I. **Overall Qualifications of the Firm. (25%)**
 - How experienced is the firm in providing this specific professional service?
 - What are the remarks of the firms references?
 - How much experience does the firm have with classification and compensation studies?
 - Does the firm have experience with comparable communities within the past five years?
- II. **Capacity of the Project Team. (20%)**
 - Has the project manager, personnel, and sub-contractors all been clearly presented and have relevant roles and experience?
 - Do the project team members have manageable workloads and are there quality control methods in place?
- III. **Project Understanding and Approach. (25%)**
 - Has the firm provided a description of their understanding of the scope of work and how they will accomplish the project?

- Has the firm provided a description of their technical approach to the work, including the various technical disciplines required to complete the job?
- Has the firm discussed anticipated challenges, if any?

IV. Schedule. (10%)

- Does the firm propose an approach in line with a reasonable and achievable timeline?

V. Cost. (20%)

- Does the firm propose an approach in line with a reasonable budget for the project?

PROPOSAL SUBMISSION INSTRUCTIONS

Deadline: The Town of Lewisville will accept proposals until 4:00 pm on September 23, 2024.

Submission Instructions: The Town will receive sealed responses to this RFP at the address set forth below until 4:00 p.m. on September 23, 2024. Responses should be labeled “Classification & Compensation Study RFP” on the front of the envelope. Those interested should submit three (3) hard copies and one (1) electronic copy of the package to be mailed or hand delivered to:

Mailing Address:

The Town of Lewisville
ATTN: Stacy Tolbert
P.O. Box 547
Lewisville, NC 27023

Physical Address:

The Town of Lewisville
ATTN: Stacy Tolbert
6510 Shallowford Road
Lewisville, NC 27023

Additional Instructions, Notifications and Information:

No Gratuities – Respondents will not offer any gratuities, favors, or anything of monetary value to any official or employee of the Town for the purpose of influencing this selection. Any attempt by a Respondent to influence the selection process by any means, other than disclosure of qualifications and credentials through this solicitation, will be grounds for exclusion from the selection process.

All Information True – By submitting a response, Respondents represent and warrant to the Town that all information provided in the response submitted shall be true, correct and complete. Respondents who provide false, misleading or incomplete information, whether intentional or not, in any of the documents presented to the Town for consideration in the selection process may be excluded.

Interviews – Interviews may or may not be required at the discretion of the Town.

Inquiries – Do not contact elected officials, appointed officials, or Town staff to make inquiries about the progress of the selection process. Respondents will be contacted when it is appropriate to do so. Process inquiries may be directed to Town Manager Stacy Tolbert via e-mail at stolbert@lewisvillenc.net or via phone at 336/945-1023.

Cost of Responses – The Town will not be responsible for the costs incurred by anyone in the submittal of responses.

Contract Negotiations – This RFP is not to be construed as a contract or as a commitment of any kind. If this RFP results in a contract offer by the Town, the specific scope of work, associated fees, and other contractual matters will be determined during contract negotiations.

Contract Form – The contract form for this project will be the Town’s standard General Services Contract (attached hereto).

No Obligation – The Town reserves the right to: (1) evaluate the responses submitted; (2) waive any irregularities therein; (3) require interviews or waive interviews of any kind; (4) accept any submittal or portion of submittal; (5) reject any or all Respondents submitting responses, should it be deemed in the Town’s best interest; or (6) cancel or reissue the entire RFP.

Ownership of Work Products – Upon payment for the services rendered, the Town shall have exclusive ownership of all intellectual property rights in all documents, designs, graphics, data, databases, reports, materials, and all other work product prepared by, for, or under the direction of the selected Respondent pursuant to any contract under this RFP (collectively, the “Intellectual Property”), including without limitation the right to copy, use, disclose, distribute, and make derivations of the Intellectual Property for any purpose or to assign such rights to any third party. The Intellectual Property shall be prepared in the Town’s name and shall be the sole and exclusive property of the Town, whether or not the work contemplated therein is performed. The Town will grant the Respondent a royalty-free, non-exclusive license to use and copy the Intellectual Property to the extent necessary to perform the contract.

Insurance – The Respondent shall have the appropriate insurance coverage types and limits, including professional liability insurance, as may be approved by the Town in its sole discretion, and written by an insurer authorized to transact insurance in the State of North Carolina. The Town shall be listed as Certificate Holder and, where required by the Town, as additional named insured.

All questions or requests for clarification should be directed only to the Town Manager, Stacy Tolbert, via phone (336/945-1023), e-mail (stolbert@lewisvillenc.net), or regular mail (P.O. Box 547, Lewisville, NC 27023). Questions must be submitted by 4:00 p.m. on September 13, 2024. Responses to questions may result in the issuance of addenda to the RFP, and any addenda will be posted no later than September 17, 2024 at www.lewisvillenc.net. It is the responsibility of all Respondents to check the website for addenda prior to submission. No questions will be answered after the date specified. The Request for Proposals is available on the Town’s website at www.lewisvillenc.net.

Attachments: Town of Lewisville Agreement

TOWN OF LEWISVILLE, NORTH CAROLINA
P.O. Box 547 Lewisville, NC 27023
336-945-5558
AGREEMENT

Brief Description of Work to be Performed

Contractor Name/Address/Phone/Email

Name

Address

Phone Number

Email

This agreement is entered into this ____ **day of** _____, **20**__ by and between _____ (the "Contractor") and the Town of Lewisville, a municipal corporation of the State of North Carolina, (the "Town"). The Town and Contractor may collectively be referred to as "Parties" hereinafter.

The Town and the Contractor, for the consideration stated herein, agree as follows:

1. Scope of Work

The Contractor agrees to perform for the Town the following services:

2. Specifications

The Contractor shall provide services in accordance with all governing agency regulations and shall be held to the same standard and shall exercise the same degree of care, skill and judgment in the performance of services for the Town as is ordinarily provided by a similar professional under the same or similar circumstances at the time in North Carolina. Upon request by the Town, the Contractor will provide plans and specifications prior to engaging in any services under this Agreement. The Contractor hereby acknowledges that it is fully licensed to perform the work contemplated by this Agreement. In the event of a conflict between any provided plans and specifications and this Agreement, this Agreement shall control.

3. Time of Commencement and Completion

Contractor shall commence the work required in this Agreement as soon as possible and Contractor shall complete entire work no later than _____. If the Contractor has not satisfactorily commenced or completed the work within the times specified, the Town may declare such delay a material breach of contract and may pursue all available legal and equitable remedies. Any changes to the schedule(s) provided in this Agreement must be agreed to in writing by the Town and the Contractor.

4. Consideration and Payment of Services

In consideration of the above services, the Town will pay the Contractor the total sum of _____ to be paid within 30 days from receipt of the invoice. The Town shall pay the Contractor's invoices at the times set forth in this Agreement unless a bona fide dispute exists between the Town and the Contractor concerning the accuracy of said invoice, the services covered thereby, or the performance of Contractor's obligations under this Agreement.

5. Indemnification

To the extent permitted by law, the Contractor agrees to defend, pay on behalf of, indemnify, and hold harmless the Town of Lewisville, its elected and appointed officials, employees, agents, and volunteers against any and all claims, demands, suits or losses, including all costs connected therewith, for any damages which may be asserted, claimed or recovered against or from the Town of Lewisville, its elected or appointed officials, employees, agents, and volunteers by reason of personal injury, including bodily injury or death and/or property damage, including loss of use thereof resulting from the negligence of the Contractor.

6. Applicability of Laws and Regulations

The Contractor shall adhere to all laws, ordinances, and regulations of the United States, the State of North Carolina, the County of Forsyth, and the Town of Lewisville in the performance of the services outlined in this Agreement and any attached specifications. This Agreement shall be governed by the laws of the State of North Carolina.

7. E-Verify Compliance

The Contractor shall comply with the requirements of Article 2 of Chapter 64 of the North Carolina General Statutes (E-Verify). The Contractor shall require all of the Contractor's subcontractors to comply with the requirements of Article 2 of Chapter 64 of the North Carolina General Statutes (E-Verify).

8. Independent Contractor

The Contractor agrees that he/she is an independent contractor not under the control or supervision of the Town and therefore not eligible for worker's compensation or other Town employee benefits. The Contractor shall be wholly responsible for the methods, means, and techniques of performance. Contractor does not make this agreement under any duress.

9. Anti-Human Trafficking

The Contractor warrants and agrees that no labor supplied by the Contractor or the Contractor's subcontractors in the performance of this Agreement shall be obtained by means of deception, coercion, intimidation or force, or otherwise in violation of North Carolina law, specifically Article 10A, Subchapter 3 of Chapter 14 of the North Carolina General Statutes, Human Trafficking.

10. Quality and Workmanship

All work shall be performed to the satisfaction of the Town. The work shall not be considered complete nor applicable payments rendered until the Town is satisfied with the services provided.

11. Insurance

The Contractor shall maintain in full force and effect throughout the term of this Agreement and throughout any extension or renewal thereof the following types of insurance in at least the limits specified below:

- a. **Workers' Compensation Insurance at or above the Statutory Minimum.**
- b. **Employer's Liability Insurance in the minimum amount of _____.**
- c. **General Liability Insurance in the minimum amount of _____.**
- d. **Automobile Insurance in the minimum amount of _____.**

The Contractor shall provide certificates of insurance showing proof of the above coverages. The Contractor shall provide notice of cancellation, non-renewal or material change in coverage to the Town of Lewisville within 10 days of their receipt of notice from the

insurance company. Notwithstanding the foregoing, neither the requirement of the Contractor to have sufficient insurance nor the requirement that the Town is named as an additional insured, shall constitute waiver of the Town's governmental immunity in any respect, under North Carolina law.

12. Pre-Project Safety Review Meeting

When specified by the Town, the Contractor shall attend a pre-project safety review meeting with the contacting Town representative prior to the start of work.

13. Default

In the event of substantial failure by the Contractor to perform in accordance with the terms of this Agreement, the Town shall have the right to terminate this Agreement upon seven (7) days written notice in which event the Contractor shall have neither the obligation nor the right to perform further services under this Agreement.

14. Termination for Convenience

The Town shall have the right to terminate this Agreement for the Town's convenience upon thirty (30) days written notice to Contractor. The Contractor shall terminate performance of services on a schedule acceptable to the Town. In the event of termination for convenience, the Town shall pay the Contractor for all services satisfactorily performed.

15. Delay Beyond the Control of the Parties

Neither Contractor nor Town shall be in default of the provisions of this Agreement for delays in performance due to forces beyond the control the Parties. "Forces Beyond the Control of the Parties" shall mean, but is not limited to, delay caused by fire, acts of God, flood, earthquakes, storms, lightning, epidemic, war, riot, strike, pandemic, civil disobedience, and/or governmental order or regulation.

16. Nonwaiver for Breach

No breach or non-performance of any term of this Agreement shall be deemed to be waived by either party unless said breach or non-performance is waived in writing and signed by the Parties. No waiver of any breach or non-performance under this Agreement shall be deemed to constitute a waiver of any subsequent breach or non-performance and for any such breach or non-performance each party shall be relegated to such remedies as provided by law.

17. Construction

Should any portion of this Agreement require judicial interpretation, it is agreed that the Court or Tribunal construing the same shall not apply a presumption that the terms hereof shall be more strictly construed against any one party by reason of the rule of construction that a document is to be more strictly construed against the party who prepared the documents.

18. No Representations

The Parties hereby warrant that no representations about the nature or extent of any claims, demands, damages, or rights that they have, or may have, against one another have been made to them, or to anyone acting on their behalf, to induce them to execute this Agreement, and they rely on no such representations, that they have fully read and understand this Agreement before signing their names, and that they act voluntarily and with full advice of counsel.

19. Severability

In the event for any reason that any provision or portion of this Agreement shall be found to be void or invalid, then such provision or portion shall be deemed to be severable from the remaining provisions or portions of this Agreement, and it shall not affect the validity of the remaining portions, which portions shall be given full effect as if the void or invalid provision or portion had not been included herein.

20. Counterparts

This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one instrument.

21. Modification

This Agreement contains the full understanding of the Parties. Any modifications or addendums to this Agreement must be in writing and executed with the same formality as this Agreement.

22. Binding Effect

The terms of this Agreement shall be binding upon the parties' heirs, successors, and assigns.

23. Assignment

The Contractor shall not assign, sublet, or transfer any rights under or interest in (including, but without limitation, monies that may become due or monies that are due) this Agreement without the written consent of the Town. Nothing contained in this paragraph shall prevent the Contractor from employing such independent consultants, associates, and sub-contractors as it may deem appropriate to assist the Contractor in the performance of services rendered.

24. Non-Appropriation

Notwithstanding any other provisions of the Agreement, the Parties agree that payments due hereunder from the Town are from appropriations and monies from the Town Council and any other governmental entities. In the event sufficient appropriations or monies are not made available to the Town to pay the terms of this Agreement for any fiscal year, this Agreement shall terminate immediately without further obligation of the Town.

25. Electronic Signature

Pursuant to Article 40 of Chapter 66 of the North Carolina General Statutes (the Uniform Electronic Transactions Act) this Agreement and all documents related hereto containing an electronic or digitized signature are legally binding in the same manner as are hard copy documents executed by hand signature. The Parties hereby consent to use electronic or digitized signatures and intend to be bound by the Agreement and any related documents. If electronic signatures are used the Agreement shall be delivered in an electronic record capable of retention by the recipient at the time of receipt.

26. Notice

A letter properly addressed and sent by mail, certified mail, or registered mail to any party at the addresses provided below shall constitute sufficient notice whenever written notice is required for any purpose of this agreement. Notice will be considered sent either when received at the appropriate address or deposited in the United States mail.

Town of Lewisville
P.O. Box 547
Lewisville, NC 27023
336-945-5558

Stacy Tolbert
Town Manager

Date

Contractor Name
Address

Signature

Date

This instrument has been preaudited in the manner required by the Local Government Budget and Fiscal Control Act.

Pam Orrell, Finance Director